

Kalam v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · WRIT - C No. 37230 of 2019 · **Writ disposed; Executive Engineer to pass speaking final order; Section 127 left open.**

HEADNOTE

A consumer challenged a recovery citation of Rs. 4,19,887 issued to the District Magistrate without a hearing. The Allahabad High Court did not quash the demand. It directed the petitioner to appear before the Executive Engineer with objections and evidence, required a speaking and reasoned final order within four weeks of that hearing, stayed coercive recovery for a limited period, and left any remaining grievance against that final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Kalam sought a writ of certiorari to quash recovery of Rs. 4,19,887 pursuant to a citation dated 16 March 2019 issued by the Executive Engineer, Vidyut Vitran Khand-I, U.P. Power Corporation Ltd., Ghazipur, to the District Magistrate, Ghazipur. He alleged coercive recovery without opportunity of hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the electricity department was heard. The petition had been briefly listed on 16 November 2019 before disposal.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to statutory appeal after speaking final order

HOLDING

On a writ to quash electricity recovery by citation to the Collector without a hearing, the Court will not decide the demand. The consumer must appear before the Executive Engineer with objections and evidence; the Engineer shall pass a speaking and reasoned final order within four weeks; coercive recovery is stayed for seven weeks or until that objection is decided, whichever is earlier; and if the consumer remains aggrieved by the final order, the remedy is an appeal under Section 127 of the Electricity Act, 2003. Default in appearing or objecting vacates the stay and revives the demand. ¶ 4-7

PRINCIPLE TAGS

relegation-to-section-127-appeal-on-merits-limitation-not-examined

After directing a speaking final order on the consumer's objections, the Court left any remaining grievance to Section 127 without examining the demand or limitation. ¶ 6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE RS. 4,19,887 RECOVERY CITATION

left to the Executive Engineer on objections, with Section 127 appeal if still aggrieved ¶ 4-6

NOT DECIDED — WHETHER THE U.P. ELECTRICITY SUPPLY CODE, 2005 HAD BEEN FOLLOWED

asserted as the ground of challenge; not examined ¶ 3